



PEOPLE OPERATIONS · POLICY

Accommodations and Leave

Disability adjustments under the ADA, and which leave entitlements actually apply at our headcount.

Accommodations and Leave

Revised March 2026

Audience

Hiring managers, HR and Finance

Classification

Internal use only

Disability Accommodations (ADA)

The Americans with Disabilities Act applies to employers with 15 or more employees, so it applies to us. It covers people working for us regardless of who employs them — a contingent worker on assignment here is protected, and both we and the agency can be responsible for getting it right.

Accommodations cover disabilities, long-term health conditions, mental health conditions, and — under the Pregnant Workers Fairness Act — pregnancy, childbirth and related conditions including lactation.

If someone asks for an accommodation, or says something that sounds like one:

- 1. Take it seriously and respond the same day.** You do not need to solve it, only to acknowledge it and involve HR.
- 2. Tell HR.** They run the process. For a contingent worker they bring in the agency, since the agency is the employer.
- 3. Do not ask for medical details.** Not the diagnosis, not the prognosis. You need to know what they cannot do and what would help, not what is wrong with them.
- 4. Do not repeat what you have been told.** Not to the team, not to another manager. HR only.
- 5. Do not decide alone,** in either direction. Refusing takes analysis; so does agreeing to something that turns out to be unworkable.

People rarely use the word "accommodation". Listen for: "**my back is bad, standing all day is getting hard**", "**I'm struggling with the early starts because of my medication**", "**I have PTSD and the open-plan floor is difficult**", "**I'm pregnant and I can't lift that**", "**I've been signed off with depression**". Any of these starts the process.

The interactive process. HR, the worker, and the agency where there is one, work out together what would let them do the job. It is a conversation, not a form. Common adjustments are small: a change of hours, equipment, a quieter place to sit, a break pattern, or working from home. Remote working as an accommodation should be granted where it works for the role.

We can decline only where an adjustment would cause genuine undue hardship — significant difficulty or expense relative to our size and resources. That is HR's assessment, with advice, not a manager's judgement call.

Retaliation is prohibited. Nobody should see any consequence for asking. Do not change someone's assignment, hours or work after a request without talking to HR — even for reasons you consider unrelated, the timing is what will be examined.

Leave Requests — What Applies at Our Size

Leave rules depend heavily on headcount, and ours put us in a particular place. This article is about what applies to us today; it should be rechecked whenever our headcount changes materially.

FMLA does not apply to us. The federal Family and Medical Leave Act binds private employers with 50 or more employees. We are below that, so we have no FMLA obligation — to employees or to external workers.

Do not tell anyone they have FMLA rights with us, and do not try to run an FMLA process.

That is not the end of the answer, and this is the part that matters:

For contingent workers, the agency is the employer — and the agency's headcount is what counts, not ours. Our agencies are considerably larger than we are, so an agency temp may well have FMLA rights through their employer. Any leave request from a contingent worker goes to their agency. Your job is to acknowledge it, tell HR, and not to say anything about entitlement.

State law applies regardless of our size. In the states we operate in:

State	What applies at our size
California	CFRA family and medical leave applies to employers with 5 or more employees. Paid sick leave applies to all employers
Colorado	FAMLI paid family and medical leave covers employees in the state. Paid sick leave applies to all employers
Illinois	Paid Leave for All Workers gives most employees paid leave they can use for any reason
Texas	No state leave mandate; federal rules only

So "FMLA doesn't apply to us" is not the same as "no leave applies". Check with HR every time.

Pregnancy and related conditions are covered by the ADA and the Pregnant Workers Fairness Act at our size, independently of any leave entitlement. See Disability Accommodations.

What to do when someone raises leave

1. Acknowledge it, and say you will come back to them.
2. Tell HR the same day.
3. For a contingent worker, HR involves the agency — the agency administers the leave and decides entitlement.
4. Do not speculate about what they are or are not entitled to. Getting this wrong in either direction creates a problem.
5. Do not change their assignment or hours because of it.

Cover. Where a contingent worker takes extended leave, HR can arrange cover through the agency. Ask early.

Contractors have no leave entitlement from us — they are a business, not an employee. If a contractor cannot deliver because of illness, that is a delivery conversation under the SOW.